

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 7197 of 2019

Applicant :- Smt. Sadhana

Opposite Party :- Rajesh Babu Katiyar, Executive Engineer And Another

Counsel for Applicant :- Puneet Bhadauria

Hon'ble Mahesh Chandra Tripathi,J.

Heard learned counsel for the applicant.

The applicant is before this Court for a direction to initiate contempt proceeding against the opposite parties for wilful disobedience of the order dated 29.05.2019 passed in Writ-C No.18947 of 2019 (Sadhana v. Dakshinanchal Electricity Distribution Corporation Ltd. & Ors.), which for ready reference is quoted as under:-

"The petitioner is said to have apply for grant of new electricity connection for his tailoring shop but the application is not being process.

The petitioner contends that he has completed all necessary formalities and have even deposited the estimated amount as well as the indemnity bond.

Sri Baleshwar Chaturvedi, learned counsel for the Dakshinanchal Vidhyut Vitran Nigam Ltd. submits that the application of the petitioner shall be considered in accordance with law by the Executive Engineer within a reasonable time.

In view of the aforesaid facts and circumstances, we dispose of the writ petition with the direction to the respondent no.3 to consider and decide the matter of grant of electricity connection to the petitioner in accordance with the provisions of Clause 4.2 to 4.4. of the U.P. Electricity Supply Code, 2005 most expeditiously, if possible within a period of one month from the date a copy of this order is produced before him.

The writ petition is disposed of."

Learned counsel for the applicant submits that a certified copy of the aforesaid order was submitted for compliance before the opposite parties but the opposite parties have wilfully not complied with the order and, thus, have committed civil contempt liable for punishment under Section 12 of the Contempt of Courts Act, 1971.

Prima facie a case of contempt has been made out. However, considering the facts and circumstances of the case, one more opportunity is afforded to the opposite parties to comply with the aforesaid order of the Court within two weeks from the date of production of a certified copy of this order.

The applicant shall supply a duly stamped registered envelope addressed to the opposite parties and another self-addressed stamped envelope to the office within three weeks from today. The office shall send a copy of this order along with the self-addressed stamped envelope of the applicant with a copy of

contempt application to the opposite parties within one week, thereafter and keep a record thereof. The opposite party shall comply with the directions of the writ Court and intimate the applicant of the order through the self-addressed envelop within a week, thereafter.

With the aforesaid observations, this application is **disposed of** at this stage with liberty to the applicant to move a fresh application, if the order is not complied with by the opposite parties within the stipulated time as aforementioned.

Order Date :- 1.11.2019

SP/